

Teaching Profession

LEGAL BASES OF PHILIPPINE EDUCATION SYSTEM

The 1987 Constitution Article XIV	
SECTION 1	The state shall protect and promote the right of all citizens to quality education at all levels and shall take appropriate steps to make such education accessible to all.
SECTION 2	The state shall: 1. Establish, maintain and support a complete, adequate and integrated system of education relevant to the needs of the people and society; 2. Establish and maintain a system of free public education in the elementary and high school levels. Without limiting the natural rights of parents to rear their children, elementary education is compulsory for all children of school age; 3. Establish and maintain a system of scholarship grants, student loan programs, subsidies and other incentives which shall be available to deserving students in both public and private schools, especially to the underprivileged; 4. Encourage non-formal, informal and indigenous learning system, as well as self learning, independent and out of school study programs particularly those that respond to community needs; and 5. Provide adult citizens, the disabled and out of school youth with training in civics, vocational efficiency and other skills.
SECTION 3	1. All educational institutions shall include the study of the Constitution as part of the curricula. 2. They shall inculcate patriotism and nationalism, foster love of humanity, respect for human rights, appreciation of the role of national heroes in the historical development of the country, teach the rights and duties of citizenship, strengthen ethical and spiritual values, develop moral character and personal discipline, encourage critical and creative thinking, broaden scientific and technological knowledge and promote vocational efficiency. 3. At the option expressed in writing by the parents or guardians, religion shall be allowed to be taught to their children or wards in the public elementary and high schools within the regular class hours by instructors designated or approved by the religious authorities of the religion to which the children or wards belong, without additional cost to the Government.
SECTION 4	1. The state recognizes the complementary roles of public and private institutions in the educational system and shall exercise reasonable supervision and regulation of all educational institutions. 2. Educational institutions, other than those established by religious groups and mission boards, shall be allowed solely by citizens of the Philippines or corporations or associations at least sixty per centum of the capital of which is owned by such citizens. The Congress may, however, require increased Filipino. 3. Equity participation in all educational institutions. The control and administration of educational institutions shall be vested in citizens of the Philippines. No educational institution shall be established exclusively for aliens and no group of aliens shall comprise more than one third of the enrollment in any school. The provisions of this subsection shall not apply to schools established for foreign diplomatic personnel and their dependents, and unless otherwise provided by law, for other foreign temporary residents. 4. All revenues and assets of non-stock, non-profit educational institutions used actually, directly and exclusively for educational purposes shall be exempt from taxes and duties. Upon the dissolution or cessation of the corporate existence of such institutions, their assets shall be disposed of in the manner provided by law. Proprietary educational institutions, including those cooperatively owned, may likewise be entitled to such exemptions subject to the limitations provided by law including restrictions on dividends and provisions for reinvestment.



	5. Subject to conditions prescribed by law, all grants endowments, donations or contributions used actually, directly and exclusively for educational purposes shall be exempt from tax.
SECTION 5	1. The State shall take into account regional and sectoral needs and conditions and shall encourage local planning in the development of educational policies and programs. 2. Academic freedom shall be enjoyed in all institutions of higher learning. 3. Every citizen has a right to select a profession or course of study, subject to fair, reasonable and equitable admission and academic requirements. 4. The State shall enhance the right of teachers to professional advancement. Non-teaching academic and non-academic personnel shall enjoy the protection of the State. 5. The State shall assign the highest budgetary priority to education and ensure that teaching will attract and retain its rightful share of the best available talents through adequate remuneration and other means of job satisfaction and fulfillment.

BATAS PAMBANSA BILANG 232 (The Education Act of 1982)

This was an act providing for the establishment and maintenance of an integrated system of education. In accordance with Section 2, this act shall apply to and govern both formal and non-formal system in public and private schools in all levels of the entire educational system.

As provided by this Act, the national development goals are as follows:

1. To achieve and maintain an accelerating rate of economic development and social progress;
2. To assure the maximum participation of all the people in the attainment and enjoyment of the benefits of such growth; and
3. To achieve and strengthen national unity and consciousness and preserve, develop and promote desirable cultural, moral and spiritual values in a changing world.

It is also stated in Section 3 that:

The State shall promote the right of every individual to relevant quality education regardless of sex, age, creed, socio-economic status, physical and mental conditions, racial or ethnic origin, political or other affiliation.

The State shall therefore promote and maintain equality of access to education as well as the enjoyment of the benefits of education by all its citizen.

Rights of Students in School (Section 9)	Rights of All School Personnel (Section 10)
1. The right to receive competent instruction, relevant quality education. 2. The right to freely choose their field of study subject to the existing curricula and continue their course up to graduation, except in cases of academic deficiency or violations of disciplinary regulations. 3. The right to school guidance and counselling services. 4. The right to access his own school records and the confidentiality of it. 5. The right to the issuance of official certificates, diplomas, transcript of records, grades, transfer credentials and other similar documents within thirty days from request. 6. The right to publish a student newspaper and invite resource persons during symposia, assemblies and other activities. 7. The right to free expression of opinions and suggestions and to effective channels of communication with appropriate academic and administrative bodies of the school or institutions. 8. The rights to form or establish, join and participate in organizations and societies recognized by the school or to form, join and maintain organizations and societies for purposes not contrary to law. 9. The right to be free from involuntary contributions except those approved by their organizations and societies.	1. Free expression of opinions and suggestions. 2. To be provided with free legal service by the appropriate government office in case of public school personnel and the school authorities concerned in case of private school personnel, when charged in an administrative, civil and/ or criminal proceedings, by parties other than the school authorities concerned, for actions committed directly in the lawful discharge of professional duties and/ or in defense of school policies. 3. Establish, join, maintain labor organization of their choice to promote their welfare and defend their interest. 4. To be free from involuntary contributions except those imposed by their own organizations.
Special Rights and/or Privileges of Teaching or Academic Staff (Section 11)	Rights of Administrators (Section 12)
1. Right to be free from compulsory assignment not related to their duties defined in their appointments or employment contracts unless compensated thereof.	School administrators shall be deemed persons in authority while in the lawful discharge of their duties and responsibilities...shall be accorded due respect and



(Additional compensation Sec. 14 RA 4670 – at least 25% of his regular remuneration) 2.Right to intellectual property 3.Teachers are persons in authority when in lawful discharge of duties and responsibilities shall thereof be accorded due respect and protection (Commonwealth Act No. 578) 4.Teachers shall be given opportunity to choose career alternatives for advancements.	protection (Commonwealth Act No. 578)
Rights of Schools (Section 13)	Maintenance of Quality Education
1.The right of their governing boards...to adopt and enforce administrative or management systems. 2.The right of institutions of higher learning to determine on academic grounds who shall be admitted to study, who may teach, and who shall be the subjects of the study and research	1.Voluntary Accreditation (Section 29) 2.Teachers and Administrators obligations and qualifications (Sections 16 and 17) 3.Government Financial Assistance to Private Schools (Section 41)